

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Squad #16	CCRB Case #: 201406199	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/18/2014 9:10 PM, Thursday, 06/19/2014 12:00 AM	Location of Incident: Alexander Avenue and East 138th Street; 40th Precinct stationhouse.	18 Mo. SOL 12/18/2015	Precinct: 40		
Date/Time CV Reported Mon, 06/23/2014 12:22 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/23/2014 12:22 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Shamika Thomas	12006	954369	PBBX
2. SGT Angel Dejesus	4405	934733	040 PCT
3. SGT Davon Alston	00136	938326	PBBX
4. POM Harris Haskovic	27534	953953	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . SGT Davon Alston	Abuse: On Alexander Avenue and East 138th Street in the Bronx, Sgt. Davon Alston supervised the stop of the car in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Harris Haskovic	Abuse: On Alexander Avenue and East 138th Street in the Bronx, PO Harris Haskovic frisked § 87(2)(b)	B . Substantiated
C . POM Harris Haskovic	Abuse: On Alexander Avenue and East 138th Street in the Bronx, PO Harris Haskovic searched § 87(2)(b)	C . Unsubstantiated
D . POF Shamika Thomas	Abuse: On Alexander Avenue and East 138th Street in the Bronx, PO Shamika Thomas frisked § 87(2)(b)	D . Substantiated
E . POF Shamika Thomas	Abuse: On Alexander Avenue and East 138th Street in the Bronx, PO Shamika Thomas searched § 87(2)(b)	E . Unsubstantiated
F . POF Shamika Thomas	Abuse: On Alexander Avenue and East 138th Street in the Bronx, PO Shamika Thomas searched § 87(2)(b) s car.	F . Substantiated
G . SGT Angel Dejesus	Abuse: At the 40th Precinct stationhouse, Sgt. Angel Dejesus did not process § 87(2)(b) and § 87(2)(b) s complaint regarding officers.	G . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On June 18, 2014, at 9:10 p.m., § 87(2)(b) and § 87(2)(b) were pulled over in § 87(2)(b)'s car on Alexander Avenue and East 138th Street, in the Bronx, by PO Harris Haskovic, PO Shamika Thomas and Sgt. Davon Alston of Patrol Borough Bronx (**Allegation A**). During the stop § 87(2)(b) was suspected of driving while intoxicated and asked to step out of the car. When § 87(2)(b) stepped out of the car, PO Haskovic frisked § 87(2)(b) (**Allegation B**) and allegedly searched him (**Allegation C**). § 87(2)(b) was also asked to exit the car by PO Thomas. PO Thomas then frisked (**Allegation D**) and allegedly searched her (**Allegation E**). Both § 87(2)(b) and § 87(2)(b) were brought to stand at the back of § 87(2)(b)'s car and Sgt. Alston administered a breathalyzer test on § 87(2)(b). The breathalyzer determined that § 87(2)(b) did not have any traces of alcohol on his breath. While § 87(2)(b) and § 87(2)(b) were at the back of the car, PO Thomas searched § 87(2)(b)'s car through the passenger's side (**Allegation F**). § 87(2)(b) was then issued two VTL summonses for failing to signal during a left turn and failing to yield to a pedestrian in the crosswalk (encl. 5e-h). Immediately after being issued the summonses, § 87(2)(b) and § 87(2)(b) went to the 40th Precinct stationhouse to file a complaint and Sgt. Angel DeJesus, of the 40th Precinct, refused to process their civilian complaint (**Allegation G**). No Stop, Question and Frisk report was prepared for § 87(2)(b) (**Allegation H**).

This case was originally assigned to Investigator Alex Lai. Following Investigator Lai's departure from the agency, the case was reassigned to the undersigned investigator on February 20, 2015.

Mediation, Notice of Claim, and Criminal Histories

This case was not eligible for mediation because § 87(2)(b) filed a lawsuit. § 87(2)(b) filed a Notice of Claim on § 87(2)(b), claiming unlawful search of persons, illegal removal from the vehicle, immediate emotional distress, embarrassment, and mental anguish and is seeking \$120,000 in damages (encl. 4h-l). A 50-H hearing was scheduled for § 87(2)(b) but was not held (encl. 13a). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (encl. 1f, 1g).
- Sgt. Davon Alston has been a member of the service for nine years and there is one substantiated CCRB allegation against him. In case 201307972, the CCRB substantiated a retaliatory arrest. The CCRB recommended charges but the NYPD disposition is still pending (encl. 1d-e)
- PO Shamika Thomas has been a member of the service for two years and there are no substantiated CCRB allegations against her. This is her first CCRB complaint (encl. 1a).
- PO Harris Haskovic has been a member of the service for two years and there are no substantiated CCRB allegations against him. This is his first CCRB complaint (encl. 1c).
- Sgt. Angel DeJesus has been a member of the service for ten years and there are no substantiated CCRB allegations against him. This is his first CCRB complaint (encl. 1b).

Findings and Recommendations

Explanation of Subject Officer Identification

- Sgt. Alston observed the § 87(2)(b)'s vehicle infractions and was aware that the other officers observed § 87(2)(b)'s Vehicle Traffic Law infractions and wanted to pull § 87(2)(b)'s car over for them. § 87(2)(g)
- PO Thomas and PO Haskovic acknowledged interacting with § 87(2)(b) and § 87(2)(b). § 87(2)(b) § 87(2)(g)
- Sgt. DeJesus was identified by § 87(2)(b) and § 87(2)(b) by name and Sgt. DeJesus was assigned to the desk on June 18, 2014. § 87(2)(g)

Investigation Findings and Recommendations

Allegation A – On Alexander Avenue and East 138th Street in the Bronx, Sgt. Davon Alston supervised the stop of the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that after he turned, he was pulled over by the officers. § 87(2)(b) stated that § 87(2)(b) had signaled to turn left but a vehicle in front of them stopped short at the intersection. § 87(2)(b) veered his car to the right of the vehicle and completed the left turn onto Morris Avenue. § 87(2)(b) believed the swerving of his vehicle may have explained why § 87(2)(b)'s car was subsequently stopped by the officers. She stated that that intersection where § 87(2)(b) made left turn is a very busy intersection and people do not usually cross the street there.

Sgt. Alston stated that he observed § 87(2)(b)'s vehicle turn left onto East 138th Street without signaling, swerve and nearly strike a pedestrian who was walking in the crosswalk, continue straight and swerve a little more. PO Haskovic asked Sgt. Alston if he saw § 87(2)(b)'s car do that and Sgt. Alston said that he did, at which point PO Haskovic activated the police car's turret lights and pulled § 87(2)(b)'s car over.

PO Haskovic stated that he observed § 87(2)(b)'s car turn left onto 138th Street without signaling and cause a pedestrian crossing the street to stop as he passed. PO Thomas stated that she observed § 87(2)(b)'s car making a left turn and that § 87(2)(b)'s car drove in front of a pedestrian who was crossing the street but not in a crosswalk and almost hit her which caused her to jump back.

When the officers stopped § 87(2)(b)'s vehicle, they administered a breathalyzer test. § 87(2)(b) received summonses for failing to yield to a pedestrian at other than a crosswalk (encl. 5e) and for failing to signal during a left turn (encl. 5f). § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: On Alexander Avenue and East 138th Street in the Bronx, PO Harris Haskovic frisked § 87(2)(b)

Allegation D – Abuse of Authority: On Alexander Avenue and East 138th Street in the Bronx, PO Shamika Thomas frisked § 87(2)(b)

It is undisputed that PO Haskovic and PO Thomas frisked § 87(2)(b) and § 87(2)(b). The extent of the frisks are in dispute. § 87(2)(b) stated that PO Haskovic patted his wrists, arms, ribs, stomach, waist and pants from his thighs to his ankles. § 87(2)(b) also saw PO Thomas frisk § 87(2)(b) in a similar manner (encl. 3a-r).

§ 87(2)(b) stated that PO Haskovic patted § 87(2)(b)'s arms, pants pockets, stomach back and legs. § 87(2)(b) stated that PO Thomas patted her arms, back, waist, pants pockets and legs (encl. 4a-g).

PO Haskovic instructed § 87(2)(b) to exit the vehicle to conduct a breathalyzer test. PO Haskovic did not recall if § 87(2)(b) had any bulges or items on his person. PO Haskovic patted § 87(2)(b)'s waistband because that is an area that is typically used to hold a weapon. PO Haskovic frisked § 87(2)(b) for weapons and for his safety because of § 87(2)(b)'s overall demeanor; § 87(2)(b) was argumentative regarding the reasons for the stop and his tone of voice was aggressive. There were no other reasons for the frisk. PO Haskovic did not recall feeling a weapon or any items during the frisk. (encl. 7a-f).

PO Thomas saw PO Haskovic pat § 87(2)(b)'s body but she could not see where on his body he patted § 87(2)(b). PO Thomas frisked § 87(2)(b) by patting the exterior of her waist and front and back pockets. PO Thomas patted § 87(2)(b) for her safety. There were no factors that raised PO Thomas's suspicion that there was a safety issue. PO Thomas frisked § 87(2)(b) because she wanted to make sure that the person she was standing next to did not have anything that could harm her. There was no indication that § 87(2)(b) was armed and PO Thomas did not feel any objects on § 87(2)(b) during the frisk (encl. 5a-k).

An officer must have reasonable suspicion that a suspect is armed to conduct a frisk People v. De Bour, 40 N.Y.2d 210 (1976) (encl. a-k).

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and D** be closed as **substantiated**.

Allegation F – Abuse of Authority: On Alexander Avenue and East 138th Street in the Bronx, PO Shamika Thomas searched § 87(2)(b)'s car.

PO Thomas leaned into § 87(2)(b)'s car through the opened front passenger door. Using her flashlight, she looked around the dashboard, the top of the front seats, and on the floor in the front and backseat to check if there was "anything" inside the vehicle because § 87(2)(b) was being argumentative with PO Haskovic. There was no other reason for searching the car. She denied opening any lids including the center console or the glove compartment. After being inside the car for less than one minute she walked to the back of the car and joined § 87(2)(b) and the other officers (encl. 5a-k).

§ 87(2)(b) and § 87(2)(b) alleged that PO Thomas opened the center console, searched through the cup that held § 87(2)(b)'s candies, opened the glove compartment and looked underneath the front seats. § 87(2)(b) also alleged that PO Thomas leaned into the car through the open rear passenger door. While in the backseat, PO Thomas allegedly brought down the armrest in-between the rear passenger seats and removed papers from the sleeve behind the front passenger seat and returned them (encl. 3a-r). § 87(2)(b) did not see PO Thomas enter the rear passenger's seat (encl. 4a-g).

PO Haskovic did not recall if an officer searched the car (encl. 7a-f). Sgt. Alston did not see PO Thomas enter or search the vehicle (encl. 6a-e).

A vehicle search has taken place when an officer breaches the plane of a car doorway to conduct a visual inspection. People v. Hernandez, 238 A.D.2d 131 (App. Div. 1st Dep't. 1997)(encl. n-o) An officer may conduct a limited search of a vehicle if there is a substantial likelihood that a weapon is located within the vehicle which presents an actual and specific danger to the officers safety. People v. Baksh, 2014 NY Slip Op 112 (encl.s-u).

§ 87(2)(g)
Therefore, it is recommended that **Allegation F** be closed as **substantiated**.

Allegation C – Abuse of Authority: On Alexander Avenue and East 138th Street in the Bronx, PO Harris Haskovic searched § 87(2)(b)

Allegation E – Abuse of Authority: On Alexander Avenue and East 138th Street in the Bronx, PO Shamika Thomas searched § 87(2)(b)

§ 87(2)(b) stated that PO Haskovic entered his pants pockets and removed then returned the items that were in them (encl. 3a-r). § 87(2)(b) corroborated this (encl. 4a-g). § 87(2)(b) stated that PO Thomas placed her hand into § 87(2)(b)'s front right pants pocket where § 87(2)(b) had a small bulge of tissue papers. § 87(2)(b) did not see if PO Thomas entered § 87(2)(b)'s pockets.

PO Haskovic denied entering § 87(2)(b)'s pockets and he did not recall seeing an officer enter § 87(2)(b)'s pockets (encl. 7a-f). PO Thomas denied entering any of § 87(2)(b)'s pockets and she did not know if PO Haskovic entered § 87(2)(b)'s pockets (encl. 5a-k). Sgt. Alston did not recall if § 87(2)(b) or § 87(2)(b) were searched (encl. 6a-e). No Stop, Question and Frisk Reports were prepared for this incident (encl. 14b)

§ 87(2)(g)
Therefore, it is recommended that **Allegations C and E** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: At the 40th Precinct stationhouse, Sgt. Angel Dejesus did not process § 87(2)(b) **and** § 87(2)(b) **s complaint regarding officers.**

§ 87(2)(b) and § 87(2)(b) both stated that at the 40th Precinct stationhouse, Sgt. DeJesus stated that he could not file the complaint for them and provided the CCRB's telephone number to § 87(2)(b). § 87(2)(b) stated that Sgt. DeJesus told him, "I can't do anything about that" and then provided the number to the CCRB. § 87(2)(b) stated that Sgt. DeJesus said, "Okay, we can't make the complaint here" and gave § 87(2)(b) the number to the CCRB.

Sgt. DeJesus did not recall the incident and therefore could not recall the interaction he had with § 87(2)(b) and § 87(2)(b). Sgt. DeJesus stated that normally if a civilian wanted to file a complaint, a form would be completed, IAB or the CCRB would be contacted, and a command log entry would be made in regards. He stated that he would not just give civilians wanting to file a complaint the CCRB's number (encl. 8a-d).

Patrol Guide Procedure 207-31 states that if the civilian asks to file a complaint in person against a member of service, it is the officer's responsibility to interview the complainant and to report the complaint to the CCRB (encl. aa-gg).

§ 87(2)(g)

_____. Therefore, it is recommended that **Allegation G** be closed as **substantiated**.

§ 87(4-b), § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date